

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Public Redacted Counterfactual Reply Brief

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** April 20, 2026

DOE's response confirms that the counterfactual record is narrower and better supported than the actual showing. That improvement does not eliminate judicial line drawing. The Court must decide whether the retained segments actually carry the implementation or human-safety functions described and whether the assumed sealing findings correspond to each closed passage.

Open Grid no longer disputes search adequacy, law-enforcement purpose, or the proposition that a genuine nonpublic trigger relation may qualify under 7(E). It does not argue that 7(F) requires a named person. Its position is that functional proof supports functional relief only.

The seventeen-passage release validates contextual review but also demonstrates that some earlier retention was unnecessary. The corrected worksheet must therefore be applied, not merely praised. Similar administrative material cannot remain hidden through association with a protected field.

This reply is complete in public form. Its notices contain no values. A corresponding controlled copy uses harmless labels for comparison under the limited-sealing protocol. Neither version belongs to the actual appeal.

7(E) Does Not Protect Administrative Proximity

The parties largely agree on doctrine. *Grey* protects nonpublic implementation details of techniques and procedures and treats qualifying guidelines under the circumvention language. The remaining disagreement concerns what the actual retained text reveals.

DOE says [REDACTED—FICTIONAL DECISION CONDITION] and [REDACTED—FICTIONAL RESPONSE ORDER] form a protected relation. Open Grid accepts that an authentic predicate-order pairing can be withheld. It also accepts protection of [REDACTED—FICTIONAL ESCALATION VALUE] when the corrected account supplies the guideline inference.

But a title, reviewer attribution, approval fact, general purpose, or instruction to preserve an audit history need not reveal that relation. Position matters only if the agency explains how position communicates implementation. A fragment is not meaningless merely because it lacks a protected subordinate value.

DOE characterizes its corrected target as narrow. The judgment should say the same. Affirmance should be limited to genuine predicate, order, implementation, and supported guideline segments. If the district ruling sweeps further, the Court should narrow it without ordering release of the protected relation itself.

7(F) Requires Segment-Level Causation

DOE's four functional groups are coherent in the abstract. An authentic duty assignment might expose a protective function, a contact category might facilitate misdirection, a safety reference might identify a safeguard, and an escalation placement might show when human protection becomes relevant.

The issue is whether each retained segment conveys that information. [REDACTED—FICTIONAL DUTY ROLE] cannot protect a general heading that merely introduces responsibility as a topic. [REDACTED—FICTIONAL CONTACT CHANNEL] does not justify deletion of public coordination principles. [REDACTED—FICTIONAL SAFETY REFERENCE] should not absorb a neutral statement that a review occurred.

The worksheet's page linkage makes those questions answerable. It must also support overlap: a dual notation needs one explanation showing implementation detail and another showing expected danger to a person. Neither exemption stands in for the other.

Open Grid agrees that the agency need not reveal a name or wait for harm. It asks only for a reasonable causal inference tied to the information withheld. If the corrected entries satisfy that test, limited affirmance is appropriate; a broader categorical ruling is not.

Narrow Sealing Must Remain Narrow in Operation

The corrected order improves public access by leaving every legal filing available in an independently worded counterpart. It identifies the applicable access interests, considers alternatives, makes document-specific findings, and expires thirty days after mandate unless a new order is supported.

The public-only projection should remain absolute absent a disclosure-specific grant. A certificate lists eligibility but creates no entitlement. An authorized session must match the participant, controlled filing, and exact resolved closure. Each open defers verification of path, byte size, digest, readability, and page count. Revocation must remove the sealed row and restore the public view.

Those controls are well tailored, but they cannot enlarge the passages covered by the findings. An authentic [REDACTED—FICTIONAL RESPONSE ORDER] or [REDACTED—FICTIONAL CONTACT CHANNEL] may justify closure when the court states why. Nearby procedural history and legal reasoning must remain public. Stable references may not expose the controlled locator.

The Court should affirm only this document-specific arrangement and expressly reject inherited, account-wide, or indefinite access. That formulation preserves the corrected ruling's virtue and prevents technology from becoming a substitute for the constitutional analysis.

Vaughn Detail Must Match the Source Function

DOE emphasizes that the corrected submissions list record, page, segment, field type, exemption, overlap, and harm. Open Grid agrees this is the proper architecture. Adequacy still depends on whether the explanation accurately describes the source function.

For 7(E), the account must distinguish a predicate from surrounding administration and an implementation relation from mere sequence in drafting. A guideline entry needs the stated circumvention connection. For 7(F), the field must reveal an assignment, contact category, safeguard, or human-linked placement—not simply use safety-adjacent vocabulary.

The inert-label view assists the judge by showing asserted placement without exposing content. It does not prove the custodian’s characterization. The Court can compare visible sentences, document structure, declaration knowledge, and the functional worksheet. In-camera review is a supplement to, not a replacement for, an adequate public explanation.

Open Grid’s ability to make these arguments demonstrates improvement, not automatic victory for DOE. The Court should articulate which functional correlations it accepts. A reasoned segment-level holding will guide segregability and ensure that future readers do not treat a valid category as a blanket exemption.

Segregability Turns on Meaning, Not Counts

The corrected review released seventeen passages on eleven images, with six images receiving two and five receiving one. It disclosed ownership, captions, revision and approval facts, recordkeeping, broad coordination, and closure administration. Those releases are material evidence of a genuine review.

Still, numerical effort is not the statutory test. Reviewers must release any remaining sentence that communicates useful nonexempt information after protected material is removed. A heading can have value even if its subordinate field is withheld. A revision note can explain governance without exposing a branch relation.

The worksheet addresses proposed fragments in the three wholly withheld records and says why placement would reveal a relation or why deletion leaves no meaning. The Court should test those explanations against the record. If they are supported, affirmance follows; if a meaningful administrative portion remains, it should be released without disturbing sustained 7(E) protection.

Open Grid requests this careful formulation because the exemption and segregability targets are distinct. Accepting some implementation withholding does not answer whether every nonexempt word surrounding it has been separated.

The Court Can Fashion an Exact Disposition

DOE frames the choice as full affirmance or a needless remand. The Court is not confined to labels. It can affirm protected predicate, ordering, qualifying guideline, and supported human-function segments while narrowing any statement that implies broader categorical coverage.

It can also affirm the corrected line review if the worksheet accounts for all meaningful administration. If a discrete omission lacks support, the Court can direct release or a limited correction without reopening search adequacy or the entire 200-page universe.

For sealing, the Court can approve the public-counterpart model, finite duration, and session controls while making clear that each passage depends on its own finding. This clarification would not reveal a controlled value and would preserve public scrutiny of the judicial reasoning.

Open Grid's requested precision is especially important because the branch is educational. A broad word such as "affirmed" should not be read to erase the distinction between techniques and guidelines, 7(E) and 7(F), exemption and segregability, or FOIA and judicial access. The disposition should state the limits that make any affirmance lawful.

Conclusion

The corrected premise supplies evidence that the actual record did not. It may justify substantially more affirmance. But the Court must connect every retained segment and every closed judicial passage to the function and harm actually proved.

Open Grid asks for a judgment preserving authentic implementation detail, qualifying guidelines, and genuinely limited human-safety information while releasing useful administration. It further asks the Court to sustain sealing only as a document-specific, finite, public-counterpart arrangement enforced through revocable verified sessions.

This public reply contains eight logical pages. All six category notices are descriptive and nonactionable. The matching controlled reply uses inert labels but does not change the positions stated here. Public access to this brief requires no grant.

Tamsin Roe certifies service through the isolated training system on April 20, 2026. No version of the reply was filed, served, or entered on the actual docket, and the document asserts no real agency fact.

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